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How regulatory relief could play out in Auckland – and it's a bureaucratic and litigious hot mess

05 August 2026

EDS has today released a sobering assessment of how the government's proposed regulatory relief framework could play out in Auckland.

Under the Natural Environment Bill and Planning Bill, which are now going through final stages of the parliamentary process, councils would have to compensate landowners for rules relating to indigenous biodiversity, landscapes and cultural protections if that rule had a significant impact on the reasonable use of the land.

"Regulatory relief is an extremely worrying concept," said EDS Reform Director Dr Greg Severinsen.

"Essentially, it is creating an entirely new property right to destroy biodiversity, because it makes councils either compensate landowners for protections or remove the protection entirely.

"The hard reality is that rates-capped councils won't be able to pay. Consultants Martin Jenkins estimated it will cost up to \$2 billion just to roll over protections we have at the moment, but there's huge uncertainty about that number. Widescale retreat from public interest protections will be the only realistic option for local government. That would be an appalling outcome for our environment.

"Because of the complexity and uncertainty of the legislative drafting, we've done a deep dive into what regulatory relief could mean on the ground in Auckland. The result is very concerning.

"There are currently around 24,000 property-level protections in place for biodiversity, landscape, cultural sites, heritage and natural character in Auckland. Over 17,000 of those are for significant ecological areas. Many would likely need to be walked back despite being in place for many years.

"If the Council tried to keep protections, it could cost significant amounts of ratepayer money. And the process for doing so would be awash with cost, delays, complexity, litigation and uncertainty. It is a hot mess that would make Resource Management Act processes look like a walk in the park.

"Ultimately, we will be left with a planning system that is the opposite of the streamlined one that Ministers say they want.

"The reality is that we have 4,000 threatened species, among the highest in the world. We need to be strengthening protections, not creating new ways to gut the ones we have left.

"We tabled a case study (see link below) on how regulatory relief might play out in Auckland at recent meetings with the Prime Minister and Minister Bishop. Yesterday, we also presented a webinar on regulatory relief, and wrote a piece in *Newsroom*, which can be viewed at the links below.

"Labour and the Greens have said they will repeal the regulatory relief framework if the government changes in November. As the Bills go through their final stages over the next couple of weeks, we really hope to see regulatory relief scrapped through an Amendment Paper," concluded Dr Severinsen.

Read the Auckland case study [here](#).

Watch EDS's webinar on regulatory relief [here](#).

+64 9 302 2972

manager@eds.org.nz



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